

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

DAVID HO,

Petitioner

VS.

MUI HO,

Respondent

) Case Number: FDI-08-768634

) Hearing Date: July 21, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER RE: CHILD SUPPORT, PAYMENT FOR COLLEGE PER DIVORCE
SETTLEMENT

TENTATIVE RULING

The parties are ordered to appear as there is no indication in the record that Petitioner has been served with a copy of the Tentative Ruling Instructions, as required by Local Rule 11.7(D)(3)(a). **The parties may appear in person in Department 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.** At the hearing the Court intends to adopt the following findings and orders:

A. Procedural History

- 1) The parties are Petitioner David Ho and Respondent Mui Ho.
- 2) On 1/16/13, the Court entered Judgment of Dissolution which provides for global settlement. The Court notes the Judgment includes a provision for a \$274 monthly child support payment for the parties' child Phoebe (see attached form FL-342) and reference to an investment account maintained by Petitioner's uncle with \$20,000 "ear marked as a college fund" which "shall not be touched by [Petitioner] for any purpose other than to pay the children's college expenses."
- 3) On 6/10/26, Respondent filed a Request for Order seeking enforcement of the terms of the Judgment entered 1/16/13. Specifically, Respondent requests the Court order Father to: (a) pay

1 the full \$274 per month in child support owed because Father only paid Mother \$211 per month
2 for Phoebe since November of 2025; and (b) pay the full \$20,000 towards the parties' children's
3 college because he has not paid the full amount.

4 4) On 1/29/26, Respondent filed a Proof of Personal Service indicating the Request for Order and
5 supportive documents were served on Petitioner on 6/23/26; however, there is no indication the
6 Tentative Ruling Instructions were served.

7 5) Respondent did not file a Responsive Declaration.

8 **B. Findings and Order**

9 1) Mother's unopposed request regarding unpaid child support is GRANTED. Father failed to pay
10 \$63 dollars per month (\$274 owed - \$211 paid) for the months of November 2025 – July 2026 (9
11 months). As such, Father owes Mother \$567 in unpaid child support. Father shall pay Mother half
12 this balance by 8/21/26 (i.e., \$283.50) and half this balance by 9/21/26 (i.e., 283.50).

13 2) Mother's request regarding enforcement of the Judgment provision related to \$20,000 "ear
14 marked as a college fund" which "shall not be touched by [Petitioner] for any purpose other than
15 to pay the children's college expenses" is DENIED without prejudice as the terms of the
16 Judgment do not include a deadline for payment of these funds. The parties are encouraged to
17 meet and confer to work out an agreed payment plan.

18 3) The Court will prepare the Findings and Order After Hearing.
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